

Smt Vanitha K P W/O J Sreenath vs Sri J Sreenath S/O Late Jayaramaiah on 15 July, 2011

Author: A.N.Venugopala Gowda

Bench: A.N.Venugopala Gowda

IN THE HIGH COURT OF KARNATAKA AT BANGALORE TM
DATED THIS THE 15TH DAY OF JULY 2011.)

BEFORE

THE HON'BLE MR. JUSTICE A. N. VENUGOPALA G SOWDA -

C.P.NO.66/11 |

BETWEEN

SMT. VANITHA K.P
W/O J.SREENATH
D/O K.R.PUTTASWAMY COWDA -
AGED ABOUT 27: YEARS .
PRESENTLY R/AT: »
THASKET NAGAR.
MARUTHI NAGAR POST,
BHADRAVATHDT. ob.
SHIMOCGA DISTRICT *.
ne .. PETITIONER

(BY SRI B.S:-MURALI, ADV,:)

SREJ.SPEENATH -

S/O LATE JAYARAMAIAH
AGED ABOUT: 32 YEARS

- R/AT:NO:25, GROUND FLOOR

J QPP: VIVEK: WASHECH

~3R2_MAIN, 18T CROSS,
7 "RA: JIVGADHI NAGAR,
, ~ BOMMAN AHALLI,
. BANGALORE-560 068.
. PRESENTLY R/AT:
~C/O MANJUNATHA REDDY
-NO.39, SRI CHOWDESHWARI NILAYA

Ferrara

SIRNAS

NGR LAYOUT, ROPENAAGRAHARA
11TH CROSS, VIRAT NAGAR
IST MAIN. BOMMANAHALLI,
BANGALORE-560 068.
.. RESPONDENT.
(BY SRI MOHAN KUMAR T. ADV., }.-

THIS C.P. IS FILED UNDER SECTION 24 OF CPC
PRAYING TO WITHDRAW AND TRANSFER THE PETITION: IN
MC NO.3735/10 PENDING ON THE FILE OF THE LEARNED
IL] ADDITIONAL FAMILY JUDGE," BANGALORE TO THE
COURT OF LEARNED PRINCIPAL' CIVIL, JUDGE {SR.DN),
BHADRAVATHI. mo

THIS C.P. cOMING. Oat FOR' ADMISSION THIS DAY,
THE COURT MADE THE FOLLOWING: | |

ORDER >

The marriage, of the petitioner and the respondent
was solemnize d on 12, Li. 09 and the petitioner has
7 given birth te to a femalé child on 31.10.10. Both the
"spouses, though well educated and were employed, on
account | of misunderstandings, they are living away

from "each other. The petitioner is living with her
. _parents at Bhadravathi. The respondent who is
ss residing in Bangalore has instituted M.C.3735/10
"under Section 13(1)(l-a) of the Hindu Marriage Act,

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against the petitioner in the Court of the Additional Judge, Family Court at Bangalore. This petition
'has been filed to transfer the said case to the 'Court . of disposal. |

2. Though the petitioner has made "various allegations against the respondent. it is unneseSsary to
consider the same and it will be for the Faraily Court to go into the veraity of the allegations made by
the petitioner against the respondent. : 'However, the fact remains that, the petitioner is. residing at
Bhadravathi, which is. about 270. Kms, away from Bangalore. The petitioner with A small kid will
not be able to attend the * "case "pending. in the 'Family Court, Bangalore. The grounds-stated in
the petition constitute valid grounds _ for grant of rélieF prayed in the petition.

-- In the result, the petition is allowed.

7 ~M.C.3735/10 pending in the Court of II Additional ' Family Judge, Bangalore, is hereby withdrawn and is transferred to the Court of Principal Civil Judge (Sr.Dn.), Bhadravathi, for trial and disposal in accordance with law. The transferee Court to decide: the: -

one year from the date of first appearance of the parties® The Family Court, Barigalore, to transfer the records of the case immediately to-the Court of Principal Civil Judge (Sr.Dn), Bhadravathi. TL.